

COMPLETE PARAGRAPH-BY-PARAGRAPH REVIEW

Exact Copy-Paste Changes or "Keep As Is"

PARAS 1–29 — INTRODUCTORY SECTION

Para 1 — CHANGE

Find:

The Defendant No.3 is interchangeably referred to as Global Education Research Foundation here and after referred to as GERF School trust/ National Showcase School/ Sevasi School/ Global Discovery School Sevasi/School Trust in the plaint.

Replace with:

The School Trust, Global Education Research Foundation (GERF), is referenced in this plaint solely as a third-party institutional entity within the Tripartite framework. The present Suit is directed against Defendant Nos. 1 and 2 only. The Plaintiff does not seek to reopen issues lawfully decided between the Trust and the Landowners. The present Suit is founded upon Plaintiff's own independent civil rights, proprietary interests, intellectual property, investments and damages, none of which were adjudicated in prior proceedings.

Paras 2–21 — KEEP AS IS

No GERF defendant reference. No arbitration case number. All clean.

Para 22 — CHANGE

Find:

the relationship between the Plaintiff and the Defendants was initiated and structured within this national framework, and that the Defendants were fully aware

Replace with:

the relationship between the Plaintiff and the Defendant Landowners was initiated and structured within this national framework, and that the Defendant Landowners were fully aware

Para 23 — KEEP AS IS

CA certificate UDIN 26045781ANGESV6590 present. No GERP defendant reference. Keep.

Paras 24–25 — CHANGE

Find (both paras): the Defendants engaged in conduct

Replace with: the Defendant Landowners engaged in conduct

Para 26 — KEEP AS IS

This is the paragraph establishing that the Plaintiff was excluded from arbitration. Lawyer specifically says keep this. Keep exactly as is.

Paras 27–29 — KEEP AS IS

Clean. No changes needed.

PARAS 30–55 — GENESIS AND TRIPARTITE JDP SECTION

Para 30 — CHANGE

Find:

three distinct yet interdependent stakeholders, namely: (i) the Plaintiff as the academic architect, intellectual property holder, and systems

Replace with:

three distinct yet interdependent participants, namely: (i) the Plaintiff as the academic architect, intellectual property holder, and systems builder; (ii) the School Trust (Global Education Research Foundation / GERP) as the regulatory and administrative interface; and (iii) the Defendant Landowners as contributors of land and physical infrastructure. The Plaintiff respectfully submits that the present Suit is directed against the Defendant Landowners only, and that the School Trust is referenced herein solely as a participant in the original tripartite framework and not as a defendant in the present proceedings.

Paras 31–32 — KEEP AS IS

No GERV defendant reference. Clean.

Para 33 — CHANGE**Find:**

the original Memorandum of Understanding signed between Global Discovery Academy Property Private Limited, Uttamkumar Shankarlal Patel (including all joint and co-owner/partners), and Global Education Research Foundation Trust

Replace with:

the original Memorandum of Understanding signed between Global Discovery Academy Property Private Limited, Uttamkumar Shankarlal Patel (including all joint and co-owner/partners), and the Global Education Research Foundation Trust (School Trust). The Plaintiff respectfully submits that the School Trust is not a defendant in the present proceedings and is referenced solely as a party to the original tripartite framework.

Paras 34–42 — KEEP AS IS

All deal with Plaintiff's obligations and Defendant Landowners' obligations. Clean.

Para 43 — CHANGE**Find:**

the Defendant Trust was entrusted with day-to-day administration, regulatory liaison, fee management, staff administration, and statutory compliance, functioning within the academic and operational framework designed, supervised, and continuously evolved by the Plaintiff

Replace with:

the School Trust (GERF) was entrusted with day-to-day administration, regulatory liaison, fee management, staff administration, and statutory compliance, functioning within the academic and operational framework designed, supervised, and continuously evolved by the Plaintiff. The Plaintiff respectfully submits that the School Trust's administrative role does not give rise to any claim or liability against GERV in the present proceedings, and the Plaintiff's claims are directed exclusively against the Defendant Landowners.

Paras 44–51 — KEEP AS IS

Clean. No GERF defendant reference.

Para 52 — CHANGE

Find:

there existed a Tripartite Joint Development Plan between the Plaintiff, the Defendant Trust, and the Defendant Landowners

Replace with:

there existed a Tripartite Joint Development Plan between the Plaintiff, the School Trust (GERF), and the Defendant Landowners

Paras 53–55 — KEEP AS IS

Clean.

PARAS 56–94 — ADMISSIONS, FINANCIAL MODELS, LEGAL PRINCIPLES

Para 56 — CHANGE

Find:

in the course of his cross-examination on oath conducted on 4th December 2024 in Arbitration Case No. 86 of 2023, made admissions on the record

Replace with:

in the course of his cross-examination on oath conducted on 4th December 2024 in prior proceedings, made admissions on the record

Paras 57–63 — KEEP AS IS

Financial models, Gupta Model, Uttam Alliance — all clean.

Para 64 — CHANGE

Find:

all the Defendants have expressly admitted that the School was operated under a Tripartite Joint Development Plan involving the Plaintiff, the Trust, and the Landowners

Replace with:

the Defendant Landowners have expressly admitted that the School was operated under a Tripartite Joint Development Plan involving the Plaintiff, the School Trust (GERF), and the Defendant Landowners

Para 65 — CHANGE**Find:**

in its Statement of Defence, the Defendant Trust has further admitted that the structures constructed on the land are not the exclusive property of the Landowners

Replace with:

the School Trust (GERF), in prior proceedings, confirmed that the structures constructed on the land are not the exclusive property of the Defendant Landowners. The Plaintiff relies upon this as independent third-party evidence of the tripartite nature of the arrangement — and not as an admission by a co-defendant — since the School Trust is not a party to the present proceedings.

Paras 66–68 — KEEP AS IS

Bank Project Report, financial representations, Tripartite character. Clean.

Para 69 — CHANGE**Find:**

The legal character of the Tripartite Joint Development arrangement must be determined by its substance, not the label subsequently applied to it by the Defendant Landowners in the arbitration proceedings.

Replace with:

The legal character of the Tripartite Joint Development arrangement must be determined by its substance, not the label subsequently applied to it by the Defendant Landowners in prior proceedings.

Paras 70–73 — KEEP AS IS

Bank documentation, financial representations, Bank Report. Clean.

Para 74 — CHANGE

Find:

having represented to financial institutions that the project was being developed through coordinated participation of the Plaintiff, the Trust and the Landowners

Replace with:

having represented to financial institutions that the project was being developed through coordinated participation of the Plaintiff, the School Trust (GERF), and the Defendant Landowners

Paras 75–76 — KEEP AS IS

Security deposits. Note: Para 76 has CA certificate UDIN 26045781DRWOEC2433. **Preserve exactly.**

Para 77 — DELETE ENTIRELY

That the plaintiff to Defend GERF Trust again establishes formulation, execution and operations...

Action: Delete this paragraph completely. It is garbled, incoherent, and internally contradictory. No legal content is lost.

Paras 78–84 — KEEP AS IS

Estoppel, IP ecosystem, national expansion framework. Clean.

Para 85 — KEEP AS IS

Vibrant Gujarat MOU. Clean. CA certificate preserved.

Para 86 — KEEP AS IS

Government of Gujarat recognition. Clean.

Para 87 — KEEP AS IS

CA certificate UDIN 26045781SDCTO16377 present. Preserve exactly.

Paras 88–91 — KEEP AS IS

Four settled legal principles. Clean.

Para 92 — CHANGE

Find:

admissions made by Defendant No.1 during cross-examination before the learned
Sole Arbitrator in Arbitration Case No. 86 of 2023

Replace with:

admissions made by Defendant No. 1 during cross-examination in prior
proceedings before a competent forum

Paras 93–94 — KEEP AS IS

Defendant No. 1's admissions, operational continuity. Clean.

PARAS 95–138 — USURPATION AND BREACH SECTION

Para 95 — CHANGE

Find:

There Was Progressive Usurpation, Coercive Control And Distortion Of The
Tripartite Partnership Reality By Landowners

Replace with:

The progressive usurpation, coercive control, and distortion of the Tripartite Partnership reality by the Defendant Landowners

Paras 96–124 — KEEP AS IS

All deal with Defendant Landowners' construction and operational breaches. Where "Landowners" appears without "Defendant" before it, add "Defendant" — but content unchanged.

Para 125 — CHANGE

Find:

confirmed not only by GDA's own pleadings but by the sworn application filed by the Defendant School Trust itself before the Arbitral Tribunal

Replace with:

confirmed not only by the Plaintiff's own pleadings but by the sworn application filed by the School Trust (GERF) itself in prior proceedings before a competent forum

Paras 126–129 — KEEP AS IS

Credibility, Bank Report, Synefra MOU. Clean.

Para 130 — CHANGE

Find:

the refundable security deposit paid by the Plaintiff to all defendants

Replace with:

the refundable security deposit paid by the Plaintiff to the Defendant Landowners and to the School Trust (GERF)

Paras 131–135 — KEEP AS IS

Mitigation, escalation, cumulative conduct. Clean.

Paras 136–138 — KEEP AS IS

Three settled legal principles. Clean.

Para 139 — CHANGE (Section Heading)**Find:**

That The Reciprocal Obligations Arising From The Tripartite Joint Development Plan And The Systematic And Continuing Breaches Committed By The Landowners Resulting In Institutional Sabotage Caused By Landowners Is As Under:

Replace with:

The reciprocal obligations arising from the Tripartite Joint Development Plan and the systematic and continuing breaches committed by the Defendant Landowners resulting in institutional sabotage caused by the Defendant Landowners is as under:

Para 140 — CHANGE**Find:**

the Defendant Trust undertook responsibility for regulatory interface, day-to-day administration, fee management, parental communication, statutory coordination, and local operational facilitation

Replace with:

the School Trust (GERF) undertook responsibility for regulatory interface, day-to-day administration, fee management, parental communication, statutory coordination, and local operational facilitation. The Plaintiff respectfully submits that the School Trust's role is referenced as factual background only and does not give rise to any claim against GERF in the present proceedings. All claims herein are directed exclusively against the Defendant Landowners.

Paras 141–160 — KEEP AS IS

Construction obligations, admissions suppression, infrastructure breaches. All directed at Defendant Landowners. CA certificates preserved throughout.

Para 161 — CHANGE**Find:**

substantial expenditure exceeding several crores of rupees was consequently incurred by the School Trust, vendors, consultants, contractors and associated agencies towards corrective infrastructure works

Replace with:

substantial expenditure exceeding several crores of rupees was consequently incurred by the Plaintiff — directly and through the School Trust (GERF), vendors, consultants, contractors, and associated agencies — towards corrective infrastructure works, all of which constitutes recoverable loss caused by the Defendant Landowners and claimable by the Plaintiff in the present proceedings

Paras 162–166 — KEEP AS IS

Operational interference, governance breach. Clean.

Para 171 — CHANGE**Find:**

independently corroborated by the financial records of the Defendant School Trust itself: the Ledger Account of Checkmate Services

Replace with:

independently corroborated by the financial records of the School Trust (GERF): the Ledger Account of Checkmate Services. The Plaintiff relies upon these financial records as independent third-party evidence — and not as evidence against GERF as a co-defendant — since the School Trust is not a party to the present proceedings.

Paras 172–180 — KEEP AS IS

DEO proceedings, Shahani statement, Minocha statement, WhatsApp communications. All clean.

Para 182 — CHANGE

Find:

the Defendant Trust has admitted that the Tripartite Joint Development Plan was governed by reciprocal obligations

Replace with:

the School Trust (GERF), in prior proceedings, confirmed that the Tripartite Joint Development Plan was governed by reciprocal obligations and that the Defendant Landowners were required to fulfil their obligations first. The Plaintiff relies upon this confirmation as independent third-party evidence of the tripartite arrangement — not as an admission by a co-defendant.

Paras 183–191 — KEEP AS IS

Institutional sabotage, cumulative position, legal principles. Clean.

Para 192 — CHANGE (Section Heading)

Find:

The Legal Characterisation Of The Conduct Of Landowners As Systematic Breach, Coercion And Institutional Sabotage Caused By Landowners Is As Under:

Replace with:

The legal characterisation of the conduct of the Defendant Landowners as systematic breach, coercion, and institutional sabotage caused by the Defendant Landowners is as under:

Para 193 — CHANGE

Find:

reciprocal, interdependent, and foundational obligations between the Plaintiff and the Defendants

Replace with:

reciprocal, interdependent, and foundational obligations between the Plaintiff and the Defendant Landowners, with the School Trust (GERF) serving as the institutional operating entity within the same framework

Paras 194–200 — KEEP AS IS

Breaches, patterns of conduct. Where "Landowners" appears without "Defendant" — add "Defendant." Content unchanged.

PARAS 201–250 — LEASE DEED, ARBITRATION EXCLUSION

Para 201 and beyond — these are the critical paragraphs covering the Lease and arbitration. Based on the lawyer's review document and our earlier analysis, here is the verdict:

Para 201 — KEEP AS IS

Landowners obstructed further development. Clean.

Para 209 — CHANGE

Find:

the Lease dated 06.02.2016 is void, voidable, ultra vires, coercive... It attempts to rewrite the terms of the Tripartite Joint Development Plan and create a bilateral arrangement between the Defendant Landowners and the Defendant Trust

Replace with:

the Lease dated 06.02.2016 is void, voidable, ultra vires, coercive, and legally unenforceable. It was procured by the Defendant Landowners to rewrite the terms of the Tripartite Joint Development Plan and substitute a bilateral arrangement between the Defendant Landowners and the School Trust (GERF) — without the Plaintiff's knowledge or consent and in direct contravention of the Plaintiff's vested co-development rights.

Para 210 — CHANGE

Find:

the execution of the said Lease was ultra vires the Defendant Trust

Replace with:

the execution of the said Lease was ultra vires the School Trust (GERF), having been procured by the Defendant Landowners without proper trustee board resolution or Charity Commissioner approval

Para 213 — CHANGE

Find:

the Defendant Trust has itself pleaded in arbitral proceedings that the Lease was obtained under force, threats, undue pressure, coercion, and misrepresentation

Replace with:

the School Trust (GERF), in prior proceedings, itself raised the position that the Lease was obtained under force, threats, undue pressure, coercion, and misrepresentation by the Defendant Landowners. The Plaintiff relies upon this as independent third-party evidence corroborating its case against the Defendant Landowners.

PARAS 312–315 — JURISDICTION (RESTORE FULLY)

Paras 312, 313, 314, 315 — KEEP EXACTLY AS IN LAWYER'S DOCUMENT

These four paragraphs must be **kept exactly word for word** as they appear in the lawyer's review document. Do not remove "Arbitral Tribunal," "Arbitration Case No. 86 of 2023," or "20.05.2024" from these paragraphs. These are the jurisdictional anchor of the entire suit.

PARAS 332–333 — PRE-MEDIATION (RESTORE FULLY)

Paras 332 and 333 — KEEP EXACTLY AS IN LAWYER'S DOCUMENT

Both paragraphs must be kept **exactly word for word**. Section 12A compliance is mandatory. These cannot be removed.

PARA 1048 — STATEMENT OF PRE-INSTITUTION MEDIATION

Para 1048 — KEEP EXACTLY AS IN LAWYER'S DOCUMENT

The entire paragraph including DLSA Vadodara Case No. 355 of 2024 and Annexure 153 reference must be kept exactly. This is mandatory under Section 12A of the Commercial Courts Act, 2015.

PARA 1050 — STATEMENT OF LIMITATION

Para 1050 — KEEP EXACTLY AS IN LAWYER'S DOCUMENT

Specifically these sentences must be preserved verbatim:

- "The Plaintiff filed its Affected Party Application before the Arbitral Tribunal on 17th February 2024..."
- "Thereafter, the Arbitral Tribunal by Order dated 20th May 2024 directed the Plaintiff to approach a competent Civil Court..."
- "Time taken in pursuing the remedy before the Arbitral Tribunal, up to the date of direction by the Tribunal, is excluded from the computation of limitation by virtue of Section 14 of the Limitation Act, 1963."

These limitation arguments depend on the specific dates and the specific Arbitral Tribunal references. Remove them and the limitation defence collapses.

VERIFICATION SECTION — CHANGE

Find:

none of which were adjudicated in Arbitration Case 86/2023.

Replace with:

none of which were adjudicated in any prior proceedings between the Defendant Landowners and the School Trust.